

25STLC08272 25STLC08272

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-08

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Case Number: 25STLC08272 Hearing Date: September 8, 2026 Dept: 25

HEARING DATE: Tues., September 8, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: California

Injury PLC v. Rodriguez, et al. COMP.

FILED: 10-31-25

CASE NUMBER: 25STLC08272

NOTICE:

OK

PROCEEDINGS: MOTION FOR ORDER TO DISCHARGE

INTERPLEADER STAKEHOLDER FROM LIABILITY AND AWARDDING COSTS AND FEES

MOVING PARTY: Plaintiff

California Injury PLC

RESP. PARTY: None

MOTION

FOR ORDER TO DEPOSIT INTERPLEADER FUNDS, FOR DISCHARGE

OF STAKEHOLDER, RESTRAINING ORDER AND ATTORNEY FEES AND COSTS

(Code Civ. Proc., § 386, 386.5)

TENTATIVE RULING:

The Court GRANTS California Injury PLC's motion. California Injury will be discharged from

liability effective upon its compliance with this order as follows:

California Injury is ordered to deposit with the Court the \$2,435.00 sum, less \$1,629.50 in attorney fees and costs awarded, for a net deposit of \$805.50, within 30 days of this order.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 3, 2026 [] Late [X]

None

REPLY: None

filed as of September 3, 2026 []

Late [X] None

ANALYSIS:

California Injury PLC filed this complaint in interpleader against Olga Rodriguez, Santillan Chiropractic Clinic, Diagnostic Imaging Network, and Orthopedic Pain Management Injury Institute regarding \$2,435.00 in net settlement proceeds received by California Injury on Rodriguez's behalf. All defendants defaulted. California Injury now moves for an order to deposit the funds with the clerk, be discharged from liability, and for attorney fees and costs.

Interpleader is a procedure whereby a person holding money or personal property to which conflicting claims are being made by others, or may be made, can join the adverse claimants and force them to litigate their claims among themselves. (Code Civ. Proc., § 386, subd. (b).) Once the stakeholder's right to interplead is established and he or she deposits the money or personal property in court, he or she may be discharged from liability to any of the claimants, enabling the

stakeholder to avoid multiplicity of actions and the risk of inconsistent results if each of the claimants were to sue him or her separately. (City of Morgan Hill v. Brown (1999) 71 Cal.App.4th 1114, 1122; Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 874.)

Substantively, California Injury contends it cannot determine the validity of conflicting demands that have been made on the settlement proceeds by the defendants and that it does not have an interest in the proceeds. All defendants have defaulted. Thus, California Injury has shown it is entitled to deposit the funds and be discharged from liability on the settlement proceeds.

California

Injury asks for attorney fees and costs it expended in interpleading this action and filing this motion. (Code Civ. Proc., § 386.6; UAP-Columbus JV 326132 v. Nesbitt (1991) 234 Cal.App.3d 1028, 1036.) California

Injury seeks the entire \$2,435.00 in funds, reflecting \$1,393.40 in costs and \$1,041.60 in attorney fees. The Court finds the \$1,393.40 in costs proper and reasonable, but the \$1,041.60 in attorney fees unreasonable. Instead, the Court grants attorney fees according to the fee schedule for a default case set forth in Superior Court of Los Angeles County, Local Rules, rule 3.214. Thus, California Injury is awarded \$236.10 in attorney fees, for a total of \$1,629.50 in attorney fees and costs.

Accordingly, the Court GRANTS

California Injury's motion. California

Injury will be discharged from liability effective upon its compliance with this order as follows:

California Injury is ordered to deposit with the Court the \$2,435.00 sum, less \$1,629.50 in attorney fees and costs awarded, for a net deposit of \$805.50, within 30 days of this order.